



CHAPTER li.

An Act to extend the limits of supply for water and gas of the Winchester Water and Gas Company to confer further powers on the Company and for other purposes. A.D. 1929.
[10th May 1929.]

WHEREAS by the Winchester Water and Gas Act 1865 (hereinafter referred to as "the Act of 1865") the Winchester Waterworks Company constituted by a deed of settlement dated the twenty-third day of July one thousand eight hundred and fifty-five and the Winchester Gas Light and Coke Company constituted by a deed of settlement dated the twenty-fourth day of May one thousand eight hundred and forty-seven (hereinafter referred to as "the dissolved companies") were dissolved and re-incorporated by the said Act under the name of the Winchester Water and Gas Company (hereinafter referred to as "the Company") :

And whereas the Company was authorised to supply water and gas within the limits prescribed by the Act of 1865 and those limits were extended by the Winchester Water and Gas Act 1903 :

And whereas owing to the demands for water and gas in parishes adjoining the Company's limits of supply it is expedient that the limits for the supply of water and gas should be extended :

And whereas the demand for water and gas within the said respective limits of supply is increasing and it is expedient that for the purpose of enabling the Company to meet such demand they should be authorised to

A.D. 1929. — raise additional money by the creation and issue of capital and by borrowing on mortgage or by the creation of debenture stock and that their borrowing powers in respect of their capital now authorised should be increased :

And whereas by the Act of 1865 all the lands works and other property real and personal of the dissolved companies were vested in the Company but that Act did not describe the works by means of which the Company were authorised to take or intercept water from the lands in upon or under which such works were constructed nor the lands upon which the Company store gas and whereas it is expedient that such lands should be described as in this Act provided :

And whereas it is expedient that the Company should be authorised to use for the manufacture of gas and residual products and for the storage of gas certain lands already acquired by them described in the Second Schedule to this Act :

And whereas it is expedient that further powers should be conferred on the Company as in this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Winchester Water and Gas Act 1929.

(2) The Winchester Water and Gas Act 1865 the Winchester Water and Gas Act 1903 the Winchester Gas (Charges) Order 1921 (S.R. & O. 1921 No. 1852) the Winchester Water and Gas Company (Modification of Charges) Order 1922 (S.R. & O. 1922 No. 1150) and this Act may be cited together as the Winchester Water and Gas Acts and Orders 1865 to 1929.

2. This Act is divided into Parts as follows :—

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Part I.—Preliminary.

Part II.—Water.

Part III.—Gas.

Part IV.—Financial.

Part V.—Administrative.

Part VI.—Miscellaneous.

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Act divided
into Parts.

3.—(1) The following Acts and parts of Acts so far as the same are applicable to the purposes of this Act and are not inconsistent with the provisions of this Act and the existing Acts are hereby incorporated with this Act (namely) :—

Incorpora-
tion of
Acts.

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to conversion of borrowed money into capital;

The Companies Clauses Act 1863 as amended by subsequent Acts except Part IV (Change of name);

The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking;

The Gasworks Clauses Act 1847;

The Gasworks Clauses Act 1871;

The Waterworks Clauses Acts 1847 and 1863.

(2) In its application to the Company section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided that every such contract entered into by the undertakers shall be alike in terms and amount to all consumers of gas supplied in like circumstances and for the same purposes" were added at the end of that section.

4. In this Act the several words and expressions to which meanings are assigned by the Acts in whole or in part incorporated with this Act shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act—

Interpreta-
tion.

"The Company" means the Winchester Water and Gas Company;

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- “The corporation” and “the city” means the mayor aldermen and citizens of the city of Winchester and the said city respectively;
- “Water capital expenditure” means capital expended on the water undertaking prescribed by the section of this Act of which the marginal note is “Separate accounts to be kept in respect of gas and water undertakings”;
- “Gas capital expenditure” means capital expended on the gas undertaking prescribed by the section of this Act of which the marginal note is “Separate accounts to be kept in respect of gas and water undertakings”;
- “The Act of 1865” and “the Act of 1903” respectively mean the Winchester Water and Gas Act 1865 and the Winchester Water and Gas Act 1903;
- “The Gas Charges Order” means the Winchester Gas (Charges) Order 1921 (S.R. & O. 1921 No. 1852);
- “The Water Charges Order” means the Winchester Water and Gas Company (Modification of Charges Order) 1922 (S.R. & O. 1922 No. 1150);
- “The existing Acts” means the Act of 1865 the Act of 1903 the Gas Charges Order and the Water Charges Order;
- “The existing water limits” and “the existing gas limits” respectively mean the limits within which the Company were authorised to supply water and gas respectively before the passing of this Act;
- “The water limits” and “the gas limits” respectively mean the limits within which the Company are for the time being authorised to supply water and gas respectively;
- “The water undertaking” and “the gas undertaking” respectively mean the water undertaking and the gas undertaking of the Company as for the time being authorised;
- “The undertaking” includes the water undertaking and the gas undertaking and when construing

the provisions of the Waterworks Clauses Acts 1847 and 1863 and the Gasworks Clauses Acts 1847 and 1871 means the water undertaking and the gas undertaking respectively; A.D. 1929.

“The added water limits” means the area referred to in the section of this Act of which the marginal note is “Extension of limits of supply of water”;

“The added gas limits” means the area described in the section of this Act of which the marginal note is “Extension of limits of supply of gas.”

PART II.

WATER.

5. The limits within which the Company may supply water shall extend to and include in addition to the existing water limits the parishes of Littleton and Crawley in the rural district of Winchester in the county of Southampton and from and after the passing of this Act the Company may within the added water limits exercise any rights powers and privileges which they may exercise within the existing water limits and the provisions of the existing Acts and this Act shall so far as applicable be in full force and have effect throughout the water limits. Extension of limits of supply of water.

6. If after the expiration of five years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in the parishes of Littleton and Crawley in accordance with the provisions of this Act the local authority of the district comprising the said parishes may provide a supply within the added water limits in accordance with the provisions of the Public Health Act 1875 or the local authority or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of the added water limits not sufficiently supplied by the Company and for the repeal of the powers of the Company in that behalf. Power to local authority &c. to supply water in case Company fail to supply.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of

A.D. 1929. — the added water limits such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Health.

Power to
maintain
&c. water-
works.

7. The Company may in upon or under the lands described in the First Schedule to this Act in or upon or under which the existing pumping station wells adits and other waterworks of the Company are now respectively situate so long as they are possessed of the said lands or any necessary rights or easements therein maintain and continue the said waterworks and may from time to time in upon or under the said lands alter extend enlarge renew and improve the same.

Power to
take water.

8. The Company may pump collect impound take use divert and appropriate for the purposes of the water undertaking all underground streams springs and water which will or may be taken or intercepted by means of the waterworks and under the lands referred to in the section of this Act of which the marginal note is "Power to maintain &c. waterworks" and described in the First Schedule to this Act.

Agreements
as to
supply of
water in
certain
cases.

9. The Company may agree with the owner or occupier of any premises within the water limits who is not entitled to demand a supply of water from the Company to extend their mains to or over the property of such owner or occupier or to supply such premises with water in either case upon such terms as may be agreed and may recover from such owner or occupier any sum or sums of money agreed to be paid in respect of such supply in the same manner as water rates or rents are recoverable by them.

Temporary
discharge of
water into
streams.

10.—(1) For the purpose of constructing enlarging extending repairing cleansing emptying or examining any of the works authorised to be constructed or maintained by them the Company may cause the water in such works to be temporarily discharged into any storm water drain or any available stream or watercourse Provided that water so discharged shall be as free as may be reasonably practicable from mud or soil or offensive matter.

(2) The powers conferred by this section shall not be exercised so as to damage or injuriously affect the railways or works of a railway company nor shall the

Company cause water to be discharged into any drain or watercourse constructed and used only for the purpose of draining such railways or works. A.D. 1929.
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(3) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

(4) The rate at which the Company may cause water to be discharged directly or indirectly into any storm water drain within the city or belonging to the corporation shall not (except in emergency) exceed such a rate as may be agreed between the Company and the corporation or as failing agreement may be determined by arbitration under and pursuant to the provisions of the Arbitration Act 1889 to be reasonable having regard to all the circumstances of the case.

11. Section 35 of the Waterworks Clauses Act 1847 in its application to the Company shall be read and construed as if the words "one eighth part" were substituted therein for the words "one tenth part." Application of section 35 of Waterworks Clauses Act 1847.

12. Notwithstanding anything contained in any Act relating to the Company the Company shall have the exclusive right of executing any works on any of the water mains of the Company for connecting any communication or service pipe therewith and the Company shall on the request of the owner or occupier of any premises who is entitled to be supplied with water by the Company execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith but subject to any obligations of such owner or occupier in relation to the execution of such work and any expenses incurred by the Company in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable summarily as a civil debt. Company to connect communication pipes with mains.

13. If the owner of any house supplied with water by the Company when so required in pursuance of section 35 (Company not bound to supply water to several houses by one pipe) of the Act 1903 fails within a period of one Separate communication pipes may be required.

A.D. 1929. — month after the receipt of such requirement to provide a separate pipe from the main pipe into such house the Company may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt.

Power to
Company
to repair
communica-
tion pipes.

14. If by reason of any injury to or defect in any communication pipe which the Company are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Company to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Company in executing such repairs shall be recoverable by the Company from the owner of the premises supplied or in cases where the communication pipe has been laid by and belongs to the occupier of such premises from the occupier :

Provided that except in case of emergency the Company shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises and in any case where the communication pipe is repairable by the owner of such house or premises to such owner not less than twenty-four hours' previous notice of their intention so to enter.

Stop-cocks
to be
fitted in
communica-
tion pipes.

15. In the case of all new buildings erected after the passing of this Act within the water limits and connected with the mains of the Company the Company may in cases where the communication pipes are laid by the owner or by the Company at his request require the owner at the time when the pipes are laid to insert or to have inserted a stop-cock in the communication or service pipe from the said premises in some position as near as is reasonably possible to the main of the Company from which the supply is given to the said premises and if such owner make default the Company may insert a stop-cock in such communication or service pipe and recover the expense from the owner summarily as a civil debt.

Penalty
for closing
valves and
apparatus.

16. Every person who shall wilfully (without the consent of the Company) or negligently close or shut off any valve cock or other work or apparatus belonging to the Company whereby the supply of water shall be

interfered with shall (without prejudice to any other right or remedy of the Company) be liable on conviction to a penalty not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. A.D. 1929.
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17. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of the supply of water by the Company who shall without the authority of the Company turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Company and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly. Penalty for interfering with valves &c.

18.—(1) When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept the Company may if a hose-pipe or other similar apparatus is used either (a) charge any additional sum not exceeding twenty-five shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first or (b) if they think fit require that all water so used shall be taken by meter on the conditions and paid for at the rates for the time being in force for the supply of water by the Company by meter or on such other terms as may be agreed. The additional sums chargeable under paragraph (a) of this subsection shall be paid quarterly in advance and be recoverable in all respects with and as the rate for the supply of water for domestic purposes to the premises. Charges for water used in garages and refrigerators.

(2) Where a person taking a supply of water from the Company for any purpose desires to use for or in connection with a refrigerating apparatus any water so supplied the Company may if they think fit require that all water used for or in connection with the said apparatus shall be taken by meter on the conditions and

A.D. 1929. — paid for at the rates for the time being in force for the supply of water by the Company by meter or on such other terms as may be agreed between him and the Company. The minimum sum per quarter which may be demanded by the Company for water used for or in connection with a refrigerating apparatus if taken by meter shall not exceed ten shillings.

Supply to
houses
partly
used for
trade.

19.—(1) The Company shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof a part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any workhouse hospital whether public or private asylum sanatorium barrack school club hotel restaurant public-house inn or common lodging-house or boarding-house capable of accommodating at least twelve persons or any public institution which is habitually occupied by at least twelve persons.

(2) Where water supplied by the Company to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the gross value thereof.

(3) The minimum quarterly charge for a supply of water by meter to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same gross value.

(4) In this section the expression “gross value” has the meaning given to that expression by section 68 of the Rating and Valuation Act 1925. Provided that until the first new valuation lists under the Rating and Valuation Act 1925 have come into force within the water limits the expression “gross value” shall be deemed to mean the gross estimated rental of the premises so supplied with water.

20. The Company shall if and when so required by a Government department owning or occupying public offices within the city or by the owner of any public offices of a local authority within the city afford to such Government department or owner a sufficient supply of water for use in such offices and such supply of water shall be provided at such rates in such quantities and on such terms and conditions as may be agreed between such Government department or owner on the one hand and the Company on the other hand or in case of disagreement as shall be determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the determination.

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Supply to
public
offices.

21. The price to be charged for a supply of water by meter shall not exceed one shilling and sixpence a thousand gallons.

Price of
supply by
meter.

22. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Company Provided always that if the Company and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Register of
meter to be
primâ facie
evidence.

23. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any officer of the Company duly authorised by them may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Company in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds.

Extension
of power
to inspect
premises.

24. Notwithstanding anything contained in any Act or Order relating to the Company it shall not be necessary for the Company to supply water at any point in any main

Pressure.

A.D. 1929. or pipe of the Company to any premises erected after the passing of this Act at a pressure greater than that in the nearest main or pipe of the Company adjacent to such premises Provided that this section shall not apply to the city.

Revision
of rates.

25.—(1) On the application of the Company or of the corporation or of the council of any rural district having for the time being jurisdiction within the water limits the Minister of Health may if satisfied that the cost of labour and materials or other circumstances affecting the water undertaking have materially changed vary by order either by way of increase or decrease the maximum rates charges and prices for the supply of water prescribed by the existing Acts and this Act :

Provided that the maximum rates charges and prices prescribed in any order made under this section shall be of such respective amounts as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the water undertaking and making good depreciation and paying all other costs charges and expenses if any properly chargeable to revenue) a reasonable return on the ordinary capital of the Company :

Provided also that in the absence of exceptional reasons the Minister of Health shall not alter the maximum rates charges and prices at less intervals than every five years.

(2) The making of the first new and of any subsequent quinquennial valuation list under Part II of the Rating and Valuation Act 1925 shall be deemed to be a circumstance affecting the water undertaking and an exceptional reason within the meaning and for the purposes of this section.

For pro-
tection of
Samuel
Bostock
and others.

26. For the protection of Samuel Bostock or other the owner or owners for the time being of the waterworks now known as " the Crabwood water supply " constructed and laid down by the said Samuel Bostock in the parishes of Littleton Crawley Sparsholt and Lainston in the rural district of Winchester or any extension of those waterworks from time to time existing in the said parishes or any of them within the area shown on the plan hereinafter in this section referred to so far as such area is within the water limits (all of whom are in this section referred to

as "the owners") the following provisions shall unless A.D. 1929.
otherwise agreed in writing between the owners and the
Company apply and have effect (that is to say) :—

- (1) Notwithstanding anything in this Act the Company shall not supply water for consumption or use in the area which comprises so much of the said parishes of Littleton and Crawley or either of them as is edged red on the plan signed in quadruplicate by Sir John Ganzoni Baronet the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Parliament Office House of Lords and another copy in the Committee and Private Bill Office of the House of Commons and the remaining copies have been retained by the Company and by the said Samuel Bostock respectively) if and so long as the owners are able and willing on reasonable notice to supply water proper and sufficient for the domestic use and other reasonable requirements of the occupiers of premises in the said portions of those parishes who shall require a supply and be willing to pay for the supply a price which having regard to all the circumstances is reasonable :
- (2) Any dispute which shall arise between the Company and the owners under this section shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

PART III.

GAS.

27.—(1) From and after the passing of this Act the gas limits shall extend to and include in addition to the existing gas limits the parishes of Littleton Crawley Sparsholt and Lainston in the rural district of Winchester and the parish of Hursley in the rural district of Hursley all in the county of Southampton.

Extension
of limits of
supply of
gas.

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(2) Subject to the provisions of this Act the Company shall have and may exercise within the added gas limits all and the like powers rights privileges and authorities for and in relation to the supply of gas and be subject to all and the like duties and obligations in respect thereof as they now have and are subject to within the existing gas limits.

On failure
of Com-
pany other
under-
takers may
apply for
powers.

28. If after the expiration of five years from the passing of this Act the Company have not laid down mains for the supply of gas in any parish or part of a parish in the added gas limits the local authority or any company or person may apply for an Act of Parliament or a Special Order for the purpose of providing such a supply and for the repeal of the powers of the Company in that behalf.

Mainten-
ance of
gasworks
&c.

29.—(1) Subject to the provisions of this Act the Company may upon the lands described in the Second Schedule to this Act so long as they are possessed of the same continue maintain erect alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the gas limits and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them. Provided that the Company shall not use the lands numbered 4 and 5 in the said schedule except for the storage of gas and works in connection with the storage and supply of gas.

(2) The Company may also—

(a) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith on any lands on which they are for the time being authorised to work up and convert residual products manufacture other products of the same kind as the Company are manufacturing from their own residual products;

(b) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other

than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary. A.D. 1929.
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30. The Company may in the case of any premises which are either in whole or in part let furnished levy and recover such charges as they think fit for taking the reading of any meter fixed in such premises at the request of and for the convenience of consumers at times other than those of the Company's periodical readings :

Charges
for special
reading of
meters.

Provided that such charges shall not exceed the sum of one shilling for each reading.

31.—(1) Every consumer of gas supplied by the Company who uses for or in connection with the consumption of such gas air at high pressure or any gas not supplied by the Company (in this section referred to as "high-pressure air or other gas") shall if required to do so by the Company provide and fix in a suitable position and use an efficient valve or other appliance for preventing the admission of such high-pressure air or other gas into the service pipe or any main through which gas is supplied by the Company and shall at all times at his own expense keep in proper order and repair any such valve or other appliance as aforesaid which shall have been provided and fixed whether upon such requirement or otherwise.

Provision
of valve
where high-
pressure
air or other
gas is used.

(2) It shall not be lawful for any consumer at any time after the passing of this Act to commence to use high-pressure air or other gas unless and until he shall have given to the Company not less than fourteen days' previous notice in writing of his intention to do so.

(3) Every consumer who at the date of the receipt by him of any such demand note as is referred to in paragraph (a) of subsection (5) of this section is using high-pressure air or other gas shall within one month after that date give to the Company notice in writing of such use and if within one month after the giving of such notice the Company require the consumer giving the same to provide and fix such a valve or other appliance as aforesaid it shall not be lawful for him after the expiration of fourteen days from the receipt of the requirement to continue to use high-pressure air or other gas unless before such expiration he shall have complied with the requirement.

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(4) If any consumer shall fail to comply with any requirement or obligation under this section the Company may cease to supply gas to him and shall not be under any obligation to resume such supply until the default shall have been remedied to their satisfaction.

(5) The Company shall give notice of the effect of the foregoing provisions of this section—

(a) (In the case of all persons who at the passing of this Act are consumers of gas supplied by the Company) on the demand notes for gas charges payable to the Company issued next after that date; and

(b) (In the case of any person becoming after the passing of this Act a consumer of gas supplied by the Company) on the first of such demand notes delivered to such person after he shall have become a consumer.

(6) The Company shall have access at all reasonable times to all premises supplied by them with gas in or upon which high-pressure air or other gas is used or the Company have reason to believe that high-pressure air or other gas is or may at the time be used in order to ascertain whether any such valve or appliance as aforesaid is efficient or is in proper order and repair or whether such a valve or appliance is provided and fixed where necessary.

(7) The Company shall be at liberty to take off remove test inspect and replace any such valve or other appliance as aforesaid such taking off removing testing inspecting and replacing to be done at the expense of the Company if the valve or other appliance be found in proper order but otherwise at the expense of the consumer.

As to construction and placing of pipes &c. between mains and meters.

32. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Company may specify the minimum size and the material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter; so far as such pipes and fittings are intended to be covered over:

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- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the gas limits and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building and shall where reasonably necessary be protected from frost or injury by a covering to the reasonable satisfaction of the Company. Provided that in the case of any building in connection with which there is provided outside the building accommodation reasonably approved by the Company for the meter or a separate meter house such meter may be placed in such accommodation or meter house instead of within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed and protected as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

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(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Anti-
fluctuators
to be used
with gas
engines.

33.—(1) The Company may by notice in writing require a consumer of gas supplied by the Company and used for the working of an engine to fix and use an efficient anti-fluctuator in a suitable position upon the premises upon which the engine is in use or to keep any anti-fluctuator fixed and used by the consumer in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

(2) If the consumer after any such notice as aforesaid fails to fix and use an efficient anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Company may cease to supply him with gas.

(3) The Company may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Company and for the purpose of ascertaining whether the anti-fluctuator is efficient and in proper order and repair may take off remove test inspect and replace the anti-fluctuator such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found efficient and in proper order but otherwise at the expense of the consumer.

(4) For the purposes of this section an "anti-fluctuator" means an apparatus for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

34. The Company and any undertakers authorised to supply gas under parliamentary powers in any district adjacent to the gas limits may with the approval of the Board of Trade to be signified in writing under the hand of the secretary or an assistant secretary of the Board enter into and carry into effect any agreement with each other in regard to all or any of the following purposes :—

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Agreements
between
Company
and other
gas under-
takers.

The use or the participation in the use or in any benefit of any premises plant organisation operations or other facilities belonging to enjoyed by carried on or provided wholly or partly by the Company in relation to the manufacture and sale of gas or products arising in such manufacture or the provision of any such facilities;

The purchase transport landing and delivery of coal and the dispatch or disposal of residual products arising in the manufacture of gas;

The carrying out of scientific research in relation to coal and such residual products as aforesaid;

The extension provision maintenance or use of any laboratories and apparatus for such research and the use or benefit of any results or discoveries arising thereby;

The provision of any buildings works or plant for the purpose of enabling either party to such agreement to give a supply of gas in bulk to the other of them;

The provision of moneys for carrying into effect any such agreement; and

Any matters or things incidental to or connected with any of the purposes aforesaid.

The Company and any undertakers entering into any such agreement shall remain and be subject to all and the same obligations and liabilities to all persons not being parties to any such agreement as they would have been subject to if such agreement had not been entered into.

The Company and any undertakers when submitting to the Board of Trade any proposals for an agreement under this section shall furnish particulars of such proposals to every local authority having jurisdiction either

A.D. 1929. — within the gas limits or the limits for the supply of gas of undertakers who are a party to any such agreement and the said local authorities shall respectively be entitled to make representations to and be heard by the Board of Trade thereon before the agreement embodying such proposals is approved by the Board.

Nothing in this section shall empower the Company or any such undertakers as aforesaid to work up and convert residual products arising from the manufacture of gas except in accordance with the provisions of and subject to the restrictions imposed by the Acts or Orders by which the Company or such other undertakers are authorised to work up and convert residual products.

Securities
may be
taken as
considera-
tion.

35. Any agreement entered into under the last preceding section of this Act may provide that any consideration in the nature of a capital payment and payable thereunder by either of the parties thereto to the other of them may be satisfied wholly or in part by the allotment of such shares or stock or such debentures or debenture stock as shall be agreed upon between the parties or partly by the one and partly by the other of such modes as may be so agreed and thereupon it shall be lawful for either of the parties to issue such shares stock or debentures or debenture stock accordingly and all shares or stock so issued shall for all purposes be deemed fully paid up :

Provided that in estimating the extent to which any such consideration is satisfied by any shares or stock issued under the provisions of this section the shares or stock shall be taken at the average price at which according to the books of the Company or the undertakers issuing the same sales of similar shares or stock were effected within the period of six months immediately preceding the issue thereof or if there has been only one sale or no sale of similar shares or stock within the said period then at the price at which the last sale of similar shares or stock was effected making due allowance in each case for any enhancement of value by reason of any accrued dividend.

The price at which such shares or stock are or is to be issued shall be determined in accordance with the provisions of this section.

36.—(1) The directors may at any time appoint any person being a director of any company which has entered into an agreement with the Company under the section of this Act of which the marginal note is “Agreements between Company and other gas undertakers” to be a director of the Company and for such purpose the number of the directors limited by section 27 (Defining qualification of directors and auditors) of the Act of 1903 may be increased by such number being not more than two as is necessary to allow of such appointment.

A.D. 1929.
—
Additional
directors
in certain
cases.

Any increase of directors under this section may continue so long as the person in respect of whom it is made is in office as a director by virtue of the provisions of this section but no longer and in no event shall there be at the same time more than two persons holding office as directors under those provisions and no person shall hold such office thereunder except during the continuance of such agreement.

(2) No person shall be appointed a director by virtue of the provisions of this section unless he has the qualification prescribed by the said section 27 of the Act of 1903.

37. In any case in which the Company and any undertakers have entered into any agreement under the section of this Act of which the marginal note is “Agreements between Company and other gas undertakers” the Company may with the approval of the Board of Trade effect exchanges of stock or securities of the Company with proprietors of stock shares or securities of such undertakers or may lend money to such undertakers to such extent as in the opinion of those undertakers will be of advantage for furthering the purposes of such agreement including reduction in the price of gas.

Loans to
under-
takers and
exchange of
securities.

38.—(1) In any case in which the Company are by virtue of any enactment relating to the undertaking authorised to cut off the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall re-connect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847:

As to mode
of cutting
off supplies.

A.D. 1929.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company subject to the provisions of section 22 of the Gasworks Clauses Act 1871 shall have and may exercise the like powers of entry as are exerciseable under that section.

Expenses
of re-con-
necting dis-
continued
supply.

39. In any case in which in consequence of any default on the part of the occupier of any premises the Company have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Company the reasonable expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have made good the default and paid such expenses.

Supply of
gas where
consumer
has separate
supply.

40. Notwithstanding anything in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive for the purposes of a stand-by supply only from the Company a supply of gas for any premises having a separate supply of gas or a supply (in use or ready for use for the purposes for which the stand-by supply of gas is required) of electricity steam or other form of energy unless he has agreed to pay to the Company such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing such stand-by supply and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises. The sum so to be paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Relief from
obligation
to supply.

41. Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the Company is in the opinion of an arbitrator appointed as hereinafter provided insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the area of supply of the Company for which such works have been provided (so far as such requirements could reasonably

have been foreseen) the Company notwithstanding anything contained in any other enactment shall not be obliged to give for any purpose other than lighting or domestic use—

A.D. 1929.

(a) a new supply of gas for the premises of any person demanding such supply at any time after the passing of this Act; or

(b) an increased supply of gas (other than an increased supply necessitated by any reduction of the declared calorific value of the gas)

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any enlargement or alteration of or addition to the distribution works of the Company :

Provided that the foregoing provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as "the applicant") shall enter into a written contract with the Company—

(i) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the Company may reasonably require; or

(ii) to make such payment or payments to the Company (in addition to any payments to be made from time to time for gas supplied to the applicant) as the Company may reasonably require

(according as the Company may in their discretion determine) in consideration of or by way of contribution towards the expenses to be incurred by the Company in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security for the payment of all moneys which may become due under the contract as the Company may reasonably demand :

Provided also that if any question shall arise under the provisions of this section between the Company and the applicant as to the sufficiency of the distribution works of the Company or as to whether such new or increased supply would necessitate the laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in

A.D. 1929. — addition to payments for gas supplied) required by the Company or as to the nature or amount of the security demanded by the Company such question shall be referred to and determined by an arbitrator to be appointed (failing agreement between the Company and the applicant) by the Board of Trade on the application of either party after notice in writing to the other of them and the decision of such arbitrator shall be final and binding :

Provided also that in determining any such question as aforesaid the arbitrator shall have regard to the following among other considerations (that is to say) :—

- (a) the total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the Company may be called upon to supply gas to the applicant;
- (b) the capital expenditure which the Company would have to incur in the laying of a new main or the making of any enlargement or alteration of or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply; and
- (c) how far such capital expenditure may become unproductive to the Company in the event of the cesser of the new or increased supply.

Subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any arbitration under this section.

Removal of fittings where gas supply discontinued.

42. The power to enter premises and remove pipes meters and fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire all or any of the pipes meters fittings or apparatus belonging to the Company.

Power to enter premises to which a supply of gas is laid on.

43. The power to enter premises in order to inspect meters fittings and works for the supply of gas and for the purpose of ascertaining the quantity of gas consumed or supplied conferred upon the Company by section 21 of the Gasworks Clauses Act 1871 shall extend to all premises in which there is any service pipe connected

with the mains of the Company except where the occupier of the premises shall have applied in writing to the Company for the disconnection of the service pipe from the mains of the Company. A.D. 1929.
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44. Any engines stoves ranges meters pipes and other apparatus and fittings let for hire by the Company under section 49 (Powers as to gasworks &c.) and section 53 (Power to company to let meters) of the Act of 1865 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be : Exemption of fittings from distress.

Provided that such apparatus and fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

PART IV. FINANCIAL.

45.—(1) Separate capital expenditure and revenue accounts shall be kept of the water undertaking and the gas undertaking. Separate accounts to be kept in respect of gas and water undertakings.

(2) As at the thirty-first day of December one thousand nine hundred and twenty-eight the capital expenditure on the water undertaking shall be deemed to be one hundred and fourteen thousand and seventeen pounds three shillings and tenpence and the capital expenditure on the gas undertaking shall be deemed to be one hundred and fifty thousand pounds.

(3) A copy of the annual accounts of the Company shall be sent to the Corporation at the same time as they are sent to the clerk of the peace.

46. The Company may from time to time raise additional capital not exceeding in the whole seventy thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall after taking into account the premiums or discounts (if any) which may be obtained or allowed respectively on the issue thereof be sufficient to produce the sum of seventy thousand pounds. Power to Company to raise additional capital.

A.D. 1929.

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Incidents
of new
capital.

47. Except as is by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends
on addi-
tional
capital
limited.

48. The Company shall not in any one year make out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of six pounds per centum per annum or than six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Dividends
to be paid
proportion-
ately.

49. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of the dividend at the prescribed maximum rate on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made on the dividend of each class.

New shares
or stock to
be sold by
auction or
tender.

50.—(1) All ordinary or preference shares or stock issued by the Company after the passing of this Act shall be issued in accordance with the provisions of this section.

(2) All ordinary or preference shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors of the Company shall from time to time determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the town clerk of the city of Winchester and the clerk to the council of every rural district wholly or partly included within the water limits and the gas limits and to the Secretary of

the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the water limits and the gas limits; A.D. 1929.

- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or the last day for the receipt of tenders as the case may be;
- (c) In the case of a sale by auction no lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds and a bid shall not be recognised unless it is in advance of the last preceding bid;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of shares or stock of the Company may be accepted in preference to the offer of the same sum by any person not such a holder as aforesaid and preference may in like manner be given to the offer of any employee of the Company or consumer of water or gas supplied by the Company;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water or gas supplied by the Company in such proportions as the Company may think fit or to one or more of those classes of persons only Provided in the case of an offer to holders of shares or stock that

A.D. 1929. if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amount applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold may be disposed of for the purpose of realising the best price obtainable at such price and in such manner as the directors may determine.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premiums (if any) and the highest and lowest prices obtained for the respective shares or stock.

Applica-
tion of
provisions
of Act of
1903.

51. The following provisions of the Act of 1903 shall apply to any shares or stock issued under the powers of this Act as if the said sections were with all necessary modifications re-enacted therein.

The sections above referred to are—

Section 13 (Holders of preference capital not to vote);

Section 18 (Application of premium arising on issue of shares or stock);

Section 25 (Application of moneys).

Power to
borrow.

52.—(1) The Company may subject to the provisions of this Act and without obtaining the certificate of a justice under the fortieth section of the Companies Clauses Consolidation Act 1845 borrow on mortgage of the undertaking in respect of the consolidated ordinary stock and preference stock issued prior to the passing of this Act any sum or sums not exceeding in the whole (inclusive of any sums borrowed by the Company prior to the passing of this Act and for the time being outstanding) one hundred and twenty-four thousand and fifty-five pounds.

(2) The Company may also borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one half of the amount which at the time of borrowing has been actually raised by the Company

(including premiums or excluding discounts as the case may be) on the issue of any ordinary and preference shares or stock after the passing of this Act under the powers of this Act but no sum shall be borrowed in respect of any stock so issued until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole amount payable on the issue of the stock in respect of which the borrowing powers are exercised and the premiums (if any) realised on the sale thereof have been paid up.

A.D. 1929.

53. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Appoint-
ment of
receiver.

54. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 and of section 22 (Debenture stock) of the Act of 1903.

Debenture
stock.

55. All money to be raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act:

Priority of
mortgages
and debenture
stock
over other
stock.

Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

56. All mortgages granted by the Company in pursuance of the powers of any Act before the passing of this Act and subsisting at that date shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were

Priority of
existing
mortgages.

A.D. 1929. — respectively granted have priority over any mortgage granted by virtue of this Act but nothing in this section shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Issue of
redeemable
debenture
stock.

57.—(1) If the Company desire to issue any debenture stock they may issue such debenture stock as redeemable stock on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

- (i) call in and pay off such debenture stock or any part thereof at any time before the date fixed for redemption;
- (ii) redeem such stock or any part thereof either by paying off such stock or by issuing to any stockholder subject to his consent other stock in substitution therefor.

(3) For the purpose of providing money for paying off such stock or providing other stock in substitution therefor the Company may issue new stock (redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid so however that the issue for that purpose does not make the total nominal amount of such stock exceed the amount of that stock which the Company are for the time being authorised to issue except during the necessary interval between the issue of the new stock and the redemption of the old stock.

(4) The Company shall not redeem out of revenue any redeemable stock issued under the powers of this section except to the extent of any discount allowed on the issue or any premium payable on the redemption of any such stock.

Water
renewal
fund.

58.—(1) The directors may if they think fit in any year appropriate out of the revenue of the water undertaking as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the water capital expenditure to a fund to be called “the water renewal fund.”

(2) The water renewal fund shall be applicable only to meet the expenses in respect of the water undertaking requisite for the maintenance and renewal of

plant and works (other than expenses incurred in the replacement or removal of plant and works) and shall be so applied from time to time for the purpose of equalising so far as practicable the annual charge to revenue in respect of such expenses. A.D. 1929.
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(3) The maximum amount standing to the credit of the water renewal fund shall not at any time exceed an amount equal to one twentieth part of the water capital expenditure.

59.—(1) The directors may if they think fit in any year appropriate out of the revenue of the gas undertaking as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the gas capital expenditure to a fund to be called “the gas renewal fund.” Gas re-
newal fund.

(2) The gas renewal fund shall be applicable only to meet expenses in respect of the gas undertaking requisite for the maintenance and renewal of plant and works (other than expenses incurred in the replacement or removal of plant and works) and shall be so applied from time to time for the purpose of equalising so far as practicable the annual charge to revenue in respect of such expenses.

(3) The maximum amount standing to the credit of the gas renewal fund shall not at any time exceed an amount equal to one twentieth part of the gas capital expenditure.

60. It shall not be lawful for the Company to carry forward at the end of any year at the credit of the profit and loss (net revenue) account any sum exceeding the total of the following amounts (that is to say):— Limitation
on carry
forward.

(a) The amount required by the Company for paying any dividend or interest which the Company are entitled or required to pay but have not paid in respect of the preceding year;

(b) An amount equal to the total sum which the Company require for payment of interest and which they would be entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year.

61. After the passing of this Act it shall not be lawful for the Company to maintain a contingency fund under section 122 of the Companies Clauses Act 1845. As to con-
tingency
fund.

A.D. 1929.
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PART V.

ADMINISTRATIVE.

Ordinary
meetings.

62.—(1) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 or in section 29 (First and other meetings) of the Act of 1865 the future ordinary meetings of the Company shall be held once only in each year in the month of February or such other month as the directors may from time to time determine.

(2) The Company and the directors shall not be required to make up a half-yearly balance sheet and accounts and the balance sheet and accounts made up by them in accordance with section 116 of the Companies Clauses Consolidation Act 1845 shall relate to the transactions of the Company in the course of the preceding year.

Notices of
meetings.

63. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings of the Company whether ordinary or extraordinary may (if the directors so determine) be given by letter sent by ordinary letter post to each shareholder instead of by public advertisement :

Provided that the letters giving the notice shall be directed according to the registered address or other known address of each shareholder prepaid and posted not later than seven clear days before the date of the meeting. In proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and put into the post office as a prepaid letter not later than the time hereby prescribed.

Interim
dividends.

64. The directors may in any year without the sanction or direction of a general meeting declare and pay out of the funds of the Company applicable to dividend an interim half-yearly dividend on any class of shares or stock in the capital of the Company on account of the dividend for that year to be declared at the next following annual general meeting but no such interim dividend shall exceed one-half of the prescribed maximum rate of dividend payable on such shares or stock.

65.—(1) The directors may close the register of transfers of consolidated ordinary stock and preference stock for a period not exceeding fourteen days previous to the payment of any interim dividend and they may close the register of transfers of mortgages or debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of any such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper circulating in the limits of supply.

A.D. 1929.

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Closing of
transfer
books.

(2) Any transfer of consolidated ordinary stock preference stock or debenture stock or mortgages made during the time when the register of transfers of such security is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the payment of any such dividend or interest as the case may be.

66. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the Company—

Register of
share-
holders
and share-
holders'
address
book.

(a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively; or

(b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

67.—(1) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether

Directors
holding
office under
or con-
tracting
with
Company.

A.D. 1929. — such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no such director shall as a director vote in respect of any such contract and if he do so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

(2) No director shall be disqualified from acting by reason of the fact that he has entered into a contract with the Company for the supply and consumption of gas.

Notice of
proposal
to appoint
director.

68. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company seven days at least before the day of election.

As to
appoint-
ment of
managing
director.

69.—(1) The directors may appoint one of their body to be a managing director and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon a managing director such of the powers exercisable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

70. The directors may from time to time appoint and employ a secretary and may remove or dismiss him from office and appoint another in his place and the directors may out of the revenues of the Company pay such salary and allowances to such secretary as the directors shall think reasonable.

A.D. 1929.

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As to
appoint-
ment of
secretary.

71.—(1) The prescribed number of auditors of the accounts of the Company shall not be less than two but the Company may at any time and from time to time appoint a firm to be the auditors of those accounts.

Auditors.

(2) The said auditors or in the case of a firm being appointed as auditors the members of such firm shall be members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or accountants approved by the Board of Trade and need not hold shares or stock in the capital of the Company.

(3) So long as a firm appointed under the provisions of this section are the auditors the provisions of this Act and of any Act incorporated therewith relating to the prescribed number of auditors shall not apply to the Company.

(4) In the event of the death or resignation of any auditor appointed under this section the directors may appoint an auditor in the place of the auditor so dying or resigning and any auditor so appointed shall hold office until the next shareholders' meeting.

72.—(1) The directors may with the sanction of a majority of the proprietors of the Company present in person or by proxy and entitled to vote and voting at a general meeting of the Company prepare put in force and from time to time modify alter or rescind a scheme or schemes enabling the employees or any class or classes of the employees as may be defined in such scheme or schemes to participate in the profits of the Company or any part of those profits as part of the terms of remuneration for the services of any such employee :

Profit-
sharing.

Provided that no such modification alteration or rescission of any such scheme or schemes shall have any retrospective effect so as to deprive any employee without his consent of any benefit accrued due to him under such scheme prior to the date of such modification alteration or rescission.

A.D. 1929.
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(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee not being under the age of sixteen years and shall be in writing and may be made on the part of the Company under the hands of any two directors or under the hand of the secretary or of any person from time to time appointed in that behalf by resolution of the directors.

(3) Notwithstanding anything in any Act or Order relating to the Company the directors may if and whenever required by any persons being the trustees under any such scheme so to do issue to any employee such amount of ordinary shares or stock as the trustees may specify (being in each case within the limit of the amount of ordinary shares or stock which the Company may for the time being be authorised to issue) without first offering such shares or stock for sale by public auction or tender:

Provided that any shares or stock issued under the provisions of this section shall be issued at the average price at which according to the Company's books sales of ordinary shares or stock of the same class were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of ordinary shares or stock of the same class within the said period then at the price at which the last sale of shares or stock of the same class was effected making due allowance in each case for any enhancement in price by reason of any accrued dividend. The price at which such shares or stock are to be issued shall be determined by the said trustees in accordance with the provisions of this subsection.

(4) The directors may also as part of any such scheme accept on deposit on behalf of any employee any savings or other sums of money belonging to such employee and pay interest thereon out of the revenues of the Company at a rate to be agreed.

Disposal
of shares or
stock and
deposits of
co-partners
on death.

73.—(1) Subject to the provisions of this section and the regulations set forth in the Third Schedule to this Act any employee who shall have become entitled to participate in the profits of the Company under any such scheme as is referred to in the last preceding section of this Act (in this section referred to as "the co-partner") may nominate any person (in this section referred to as

“nominee”) who on the death of the co-partner shall (to the extent of a total value of not exceeding one hundred pounds and so far as the shares or stock are or is covered by such nomination) be entitled to be registered as holder of any ordinary shares or stock of the Company and to be paid any bonus or other sums left on deposit (in this section called “deposits”) with persons being the trustees under such co-partnership scheme (in this section referred to as “the trustees”) and standing in the name of the co-partner at the time of his death. A.D. 1929.
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(2) On receiving satisfactory proof of the death of a co-partner who has made a nomination in force at his death the directors and the trustees if within three months after the death of the co-partner they have no notice of the claim of any creditor shall subject to the provisions of this section and the said regulations give effect to the nomination to the extent of a total value of not exceeding one hundred pounds and shall respectively in accordance with the directions of the nomination register the nominee as holder of the shares or stock and pay to the nominee the deposits standing in the name of the co-partner at his death or as the case may be the portion of the shares or stock and deposits mentioned in the nomination :

Provided that if the total value of the shares or stock and deposits standing in the name of the co-partner at his death exceeds eighty pounds the directors and the trustees shall before giving effect to the nomination to a greater extent than three-fourths of the total value of such shares or stock and deposits require the production of a duly stamped receipt for all death duties payable on such shares or stock or deposits or a letter or certificate from the Commissioners of Inland Revenue stating that no such duty is payable and the Commissioners shall give such receipt letter or certificate on the payment of the duty or satisfactory proof of no duty being payable as the case may be.

(3) If any co-partner dies intestate without having made any nomination under this section in force at his death and the total value of the shares or stock and deposits standing in his name does not exceed one hundred pounds then without letters of administration the directors and the trustees if within three months of the death of the co-partner they have no notice of the

A.D. 1929. claim of any creditor shall respectively register the
— shares or stock in the names of and pay the deposits
to—

- (a) the widow (if any) of the deceased co-partner;
- (b) if there be no widow the person or persons entitled in distribution to the residuary estate of the co-partner in accordance with the provisions of section 46 (1) (ii) to (v) inclusive of the Administration of Estates Act 1925 and in default of any such person to the solicitor for the affairs of His Majesty's Treasury; or
- (c) in any event if the directors think fit to any person who has paid the funeral expenses of the co-partner such amount not exceeding the total amount of such expenses as the directors shall deem it reasonable to allow :

Provided that in every case where the deceased co-partner has left no widow and the persons entitled under the said Act are more than two the directors may if they think fit sell the shares and distribute the proceeds (after deducting the proper expenses of such sale and distribution) among such persons in the shares in which they are entitled under the said Act and for the purposes of such sale the directors may by a resolution authorise the secretary to execute the transfer of the shares to the purchaser or the purchasers thereof :

Provided further that if the total value of the shares or stock and deposits of the deceased co-partner exceeds eighty pounds the directors and trustees shall before dealing with the shares or stock or deposits under this subsection to a greater extent than three-fourths of the total value of such shares or stock and deposits obtain from the Commissioners of Inland Revenue a receipt for all death duties payable thereon or a letter or certificate stating that no such duty is payable.

(4) When the principal value of the estate in respect of which estate duty is payable of any co-partner exceeds one hundred pounds any shares or stock registered or sum paid under this section without probate or letters of administration shall notwithstanding such registration or payment be liable to estate duty as part of the amount on which the duty is charged.

(5) The directors and the trustees shall respectively before registering any person as the holder of any shares or stock or paying to any person any deposits standing in the name of a deceased co-partner satisfy themselves that the principal value of the estate of the deceased co-partner does not after deduction of debts and funeral expenses exceed one hundred pounds and in the absence of other evidence to their satisfaction shall be empowered to require a statutory declaration by such person to that effect. A.D. 1929.
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(6) Any registration of shares or stock or payment of deposits made by the directors or the trustees under the provisions of subsection (3) of this section shall be valid and effectual against any demand made upon the Company the directors or the trustees by any other person but the next-of-kin or lawful representative of the deceased co-partner shall have remedy for recovery of the shares or stock so registered or deposits so paid as aforesaid against the person who has been registered as holder of the shares or stock or received the deposits.

(7) For the purposes of this section the value of the shares or stock of a deceased co-partner shall be deemed to be the value of such shares or stock as at the date of the death of the co-partner and in the event of the directors and trustees being restricted under the provisions of this section from giving effect to any nomination made by a deceased co-partner and in force at his death to the whole extent of the nomination they shall primarily give effect thereto to the extent to which it relates to shares or stock.

74.—(1) The directors may grant such gratuities pensions or allowances or make such other payments as they may think fit to any employee of the Company or where in any particular case no adequate provision is in their opinion otherwise made to the widow or family or any dependant of any such employee and they may establish and maintain a fund out of which such gratuities pensions allowances and payments may be granted or made. Power to make superannuation and other allowances.

(2) Any fund formed by employees of the Company under a contributory pension scheme in existence at the date of this Act shall be deemed to have been established under the provisions of this section. The said fund shall not come into operation until it has been registered

A.D. 1929. under the Superannuation and other Trust Funds
— (Validation) Act 1927.

(3) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependant such gratuities pensions allowance or payments as are by this section authorised to be granted or made.

(4) The directors may subscribe or make donations to any fund raised in case of national emergency or to infirmaries hospitals and convalescent homes and other institutions and objects or to the benevolent and sick funds of the employees of the Company.

(5) The directors may apply the revenues of the Company for any of the purposes of this section.

Dwelling-
houses for
employees
offices
recreation
grounds &c.

75. The Company may purchase or take on lease houses cottages and other buildings for their employees and offices showrooms and other buildings for the purpose of the undertaking and ground for the purpose of recreation of their employees and may erect fit up and maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Power to
purchase
lands by
agreement.

76. The Company may for the purposes of the undertaking in addition to the lands described in the First and Second Schedules to this Act and any other lands now belonging to them purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole twenty acres which the Company may require for the purposes of their works and the undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

PART VI.

MISCELLANEOUS.

Application
of Water-
works
Clauses Act
1847 and
Gasworks
Clauses Act

77. The provisions of the Waterworks Clauses Act 1847 or of the Gasworks Clauses Act 1847 (as the case may be) with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any street or road within the water limits of any discharge

pipes and within those limits or the gas limits of telephone or telegraph posts wires conductors or apparatus which the Company may and which they are hereby authorised to lay down or erect for the purposes of the undertaking :

A.D. 1929.

—
1847 to pipes
telephones
&c.

Provided that any telephone or telegraph posts wires conductors or apparatus laid down or erected by the Company under the provisions of this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed and maintained and used as to prevent interference with any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line :

Provided also that nothing in this section shall authorise the breaking up of any street or road belonging to a railway company without the consent of such company which consent shall not be unreasonably withheld.

78. Where the limits of supply are bounded by or abut upon any street or road wholly outside such limits the Company may for the purpose of supplying gas or water to the owner or occupier of any premises abutting upon such street or road and being within such limits exercise with respect to such street or road the like powers of breaking up the same for the purpose of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets or roads within the limits of supply and subject to the like conditions and the owner or occupier of any such premises may for the purpose of laying any communication pipe or of complying with any obligation to maintain any pipe or apparatus which he is liable to maintain exercise the like power of opening the ground between any main or pipe of the Company and his premises and of opening or breaking up so much of the pavement of the street as shall be between such main or pipe and his premises and any sewer or drain therein as if such street or road were within the limits of supply Provided that nothing in this section shall entitle or require the Company to supply gas or water to the

As to
streets and
roads
forming
boundary
of gas or
water
limits.

A.D. 1929. — owner or occupier of any premises abutting upon any such street or road as aforesaid and being outside the limits of supply.

Recovery of demands. **79.** Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the undertaking whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Several sums in one summons. **80.** Where the payment of more than one sum by any person is due under the provisions of any Act or Order from time to time relating to the undertaking any summons or warrant issued for the purposes of that Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Authentification and service of notices by Company. **81.** Any notice to be served by the Company on a person supplied with water or gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of water or gas by the name either of the secretary or such officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of penalties &c. **82.** Save as otherwise expressly provided by any Act or Order from time to time relating to the undertaking all offences against any such Act or Order and all

penalties forfeitures costs and expenses imposed or recoverable thereunder or under any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner : A.D. 1929.
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Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

83. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or any other Act from time to time relating to the Company by reason of his being liable to any water rate gas rate or meter rate or other charges. Judges not
disqualified.

84. The following provisions of the undermentioned Acts and Orders are hereby repealed :— Repeals.

The Act of 1865—

- Section 29 (First and other meetings);
- Section 41 (Power to hold lands) the proviso;
- Section 52 (Consumers may be required to consume by meter);
- Section 53 (Power to Company to let meters);
- Section 54 (Register of gas meter to be *prima facie* evidence);
- Section 55 (Power to remove meters and fittings);
- Section 56 (Fraudulently injuring meters &c.);
- Section 57 (Recovery of charges for gas &c.);
- Section 58 (Contents of warrant);
- Section 59 (Warrant shall include costs);
- Section 61 (Liability to gas rate not to disqualify justices).

The Order of 1888—

The whole Order.

The Act of 1903—

- Section 14 (New shares or stock to be offered by auction or tender);
- Section 15 (Purchase money of capital sold to be paid within three months);

A.D. 1929.

Section 16 (Notice to be given as to sale of shares or stock);

Section 17 (Shares or stock not sold by auction or by tender may be offered to shareholders employees or consumers);

Section 27 (Defining qualification of directors and auditors) so far as it relates to auditors;

Section 33 (Rates for supply of water by measure for trade purposes);

Section 48 (Dwelling-houses for workmen).

The Winchester Gas (Standard of Calorific Power) Order 1917—

The whole Order.

Costs of
Act.

85. All costs charges and expenses of and incidental to the applying for obtaining making and approval of this Act and otherwise in relation thereto shall be paid by the Company and may in whole or in part be defrayed out of revenue. Provided that not more than one third part of such costs charges and expenses shall be charged to revenue in any one year.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1929.
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THE FIRST SCHEDULE.

(Referred to in the sections of this Act of which the marginal notes are "Power to maintain &c. water-works" and "Power to purchase lands by agreement")

LANDS FOR WATERWORKS.

1. A piece of land belonging to the Company in the city of Winchester containing .504 acres or thereabouts bounded on the north partly by the Romsey Road on the east by the western boundary of the premises known as No. 37 Romsey Road then again on the north by the premises known as Nos 37 35 33 31 29 27 25 Romsey Road and by the stores and yard in Romsey Road adjoining the eastern boundary of the said premises No. 25 Romsey Road and again on the east partly by the premises known as Nos. 1 to 6 Highfield Terrace and partly by the premises known as No. 3 Mews Lane on the south by a private road being a continuation westward of Mews Lane on the north of the premises known as "Egmont" St. James' Lane and on the west by land situated to the southern side of Romsey Road and belonging or reputed to belong to the corporation of Winchester.

2. The properties containing .1 acres or thereabouts known as Nos. 1 2 and 3 Mews Lane in the city of Winchester.

3. A house and garden containing .38 acres or thereabouts belonging to the Company known as St. George's Lodge St. James' Lane in the city of Winchester.

4. A piece of land containing .831 acres or thereabouts belonging to the Company in the city of Winchester being enclosures Nos. 253 and 254 on the $\frac{1}{2500}$ Ordnance map Hampshire sheet XL. 16 (edition of 1909).

5. A piece of land containing .475 acres or thereabouts belonging to the Company in the city of Winchester being enclosure No. 191 on the $\frac{1}{2500}$ Ordnance map Hampshire sheet XLI. 13 (edition of 1909).

A.D. 1929.

THE SECOND SCHEDULE.

(Referred to in the sections of this Act of which the marginal notes are "Maintenance of gasworks &c." and "Power to purchase lands by agreement.")

GAS LANDS.

LANDS FOR MANUFACTURE AND STORAGE OF GAS AND RESIDUAL PRODUCTS.

1. A piece of land belonging to the Company in the parish of Chilcomb Without in the rural district of Winchester in the county of Southampton being enclosure No. 6 on the $\frac{1}{2500}$ Ordnance map Hampshire sheet XLI. 10 (edition of 1909).

2. A piece of land belonging to the Company in the parish of Chilcomb Without in the rural district of Winchester in the county of Southampton containing five acres or thereabouts being parts of enclosures Nos. 10 and 11 on the $\frac{1}{2500}$ Ordnance map Hampshire sheet XLI. 10 (edition of 1909) bounded on the north by enclosure No. 137 on the said map on the east by property belonging or reputed to belong to the Ecclesiastical Commissioners on the south by enclosure No. 9 on the said map and on the west by the before-mentioned enclosure No. 6 on the said map.

3. A piece of land belonging to the Company in the parish of Easton in the rural district of Winchester in the county of Southampton containing five acres or thereabouts being parts of the enclosures Nos. 136 and 137 on the $\frac{1}{2500}$ Ordnance map Hampshire sheet XLI. 10 (edition of 1909) bounded on the north and east by property belonging or reputed to belong to George Henry King of the Manor House Easton on the south by the before-mentioned enclosure No. 6 on the said map and on the west by a public footpath adjoining the Didcot Newbury and Southampton branch of the Great Western Railway Company.

4. A piece of land belonging to the Company in the city of Winchester bounded on the north by the premises known as Nos. 76 78 80 and 82 Water Lane and by the stables and yard in Redhouse Lane adjoining the eastern boundary of the said premises No. 82 Water Lane and on the east by Chester Road and on the south by No. 74 Water Lane and on the west by Water Lane.

5. A piece of land belonging to the Company in the city of Winchester bounded on the north by the premises known as No. 16 Andover Road on the east by Andover Road on the south partly by the premises known as No. 14 Andover Road and partly by the premises known as No. 36 Stockbridge Road and partly by property belonging or reputed to belong to the Hants and Dorset Bus Services Limited and on the west by land belonging or reputed to belong to the Southern Railway Company. A.D. 1929.

THE THIRD SCHEDULE.

(Referred to in the section of this Act of which the marginal note is "Disposal of shares or stock and deposits of co-partners on death.")

REGULATIONS AS TO DISPOSAL OF SHARES OR STOCK AND DEPOSITS OF CO-PARTNERS ON DEATH.

1. In these regulations "the directors" and "the secretary" respectively mean the directors and secretary of the Winchester Water and Gas Company "appointor" means any person who makes a nomination under the provisions of the section of the Winchester Water and Gas Act 1929 of which the marginal note is "Disposal of shares or stock and deposits of co-partners on death" and the "trustees" "deposits" and "nominee" have the same respective meanings as are given thereto in the same section.

2. A nomination shall be in writing in the form prescribed by the trustees and shall be signed by the appointor in the presence of a witness and shall be sent by post or left at the office of the secretary during the lifetime of the appointor.

3. A nomination when received by the secretary shall be registered and the receipt thereof shall be acknowledged.

4. A nomination may be revoked by the appointor by writing under his hand signed in the presence of a witness and the revocation shall be sent by post to or left at the office of the secretary during the lifetime of the appointor.

5. A revocation when received by the secretary shall be registered in like manner as in the case of a nomination and the receipt thereof shall be acknowledged.

6. The marriage of an appointor shall operate as a revocation of any nomination theretofore made by that appointor.

7. A nomination may relate to the whole of the shares or stock and deposits standing in the name of an appointor or to part only of such shares or stock and deposits.

A.D. 1929.

8. Except where otherwise stated a nomination shall be deemed to extend to all shares or stock and deposits to which an appointor is entitled at the time of his decease up to a total value of not exceeding one hundred pounds but an appointor may in a nomination expressly exclude any part of such shares or stock or deposits from the operation of such nomination.

9. A nomination may be in favour of one person or of several persons and in the latter case may direct that on the death of the appointor the shares or stock shall be registered in the name of and that the deposits shall be paid to one or more of the nominees or that the nominees shall be registered as owners of the shares or stock and shall take the deposits or any of them respectively in specified shares or may give directions to both effects.

10. No person who witnesses the signature of an appointor to a nomination shall take any benefit under the nomination.

11. The receipt of any nominee who has attained the age of sixteen years shall be a good discharge to the trustees for any sum paid to him notwithstanding that such nominee has not attained the age of twenty-one years.

12. Where the directors have registered shares or stock in the name of or the trustees have paid deposits to a nominee in ignorance of a marriage of the appointor subsequent to the nomination the registration shall be deemed to have been lawfully made and the receipt of the nominee shall be a valid discharge for the sum so paid.

13. Where any nominee is at the death of the appointor an infant under the age of sixteen years and it is proved to the satisfaction of the trustees that funds are needed for the maintenance education or benefit of such infant the directors may register the shares or stock in the name of and the trustees may pay the deposits mentioned in the nomination or any part thereof to any person who may satisfy the trustees that he will apply any money received by him from the trustees or by the sale of or as interest on such shares or stock for the maintenance education or benefit of such infant and the receipt of such person shall be a good discharge to the trustees for the amount so paid.

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